

The Tamarind (with seed) Grading and Marking Rules, 2008

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The Tamarind (with seed) Grading and Marking Rules, 2008

UNION OF INDIA

India

The Tamarind (with seed) Grading and Marking Rules, 2008

Rule THE-TAMARIND-WITH-SEED-GRADING-AND-MARKING-RULES-2008 of 2008

Published on 28 August 2008

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The Tamarind (with seed) Grading and Marking Rules, 2008

Published vide Notification No. G.S.R. 628(E), dated 28th August, 2008

Ministry of Agriculture

(Department of Agriculture and Co-operation)

G.S.R. 628(E). - Whereas the draft of Tamarind (with seed) Grading and Marking Rules, 2007, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) was published vide notification vide G.S.R. 268 dated 8th December, 2007. In the Gazette of India, Part II, Section 3, sub-section (i) Inviting objections and suggestions from all persons likely to be affected thereby within forty five days from the date on which copies of the said notification published in the Gazette of India were made available to the public.

And whereas copies of the said notification were made available to the public on 8th January, 2008. And whereas the objections and suggestions received from the public in respect of the said draft rules have been duly considered.

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937, the Central Government hereby makes following rules, namely :-

Rules

1.

Short title, application and commencement.

(1)

These rules may be called the Tamarind (with seed) Grading and Marking Rules, 2008.

(2)

They shall apply to Tamarind (with seed) obtained from *Tamarindus indica* L. of family Leguminosae.

(3)

They shall come into force on the date of their final publication in the Official Gazette.

2.

Definitions.

- In these rules unless the context otherwise requires -

(a)

"Agricultural marketing adviser" means the agricultural marketing adviser to the Government of India;

(b)

"authorised packer" means a person or body of persons who has been granted the certificate of authorization to grade and mark Tamarind (with seed) in accordance with the grade standards and procedure prescribed under these rules;

(c)

"Certificate of authorization" means a certificate issued under the provisions of General Grading and Marking Rules, 1988 authorising a person or a body of persons to grade and mark Tamarind (with seed) with the grade designation mark;

(d)

"General Grading and Marking Rules" means the General Grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1931 (1 of 1937);

(e)

"Schedule" means a Schedule appended to these rules.

3.

Grade designation mark.

- The grade designation mark shall consist of "Agmark Insignia" consisting of a design incorporating the certificate of authorization number, the word "Agmark", name of commodity and grade designation resembling the one as set out in Schedule I.

4.

Grade designation.

- The grade designation to indicate the quality of Tamarind (with seed) shall be as set out in column I of Schedule II.

5.

Quality.

- The quality of Tamarind (with seed) shall be as set out in against each grade designation in columns 2 to 8 of Schedule II.

6.

Method of packing.

- (i) Tamarind (with seed) shall be packed only in sound, clean and dry containers made of jute or cloth with suitable inner lining of food grade material, laminated polyethylene or poly propylene or high density polyethylene bags, pouches or any other packaging material duly approved by the Agricultural Marketing Adviser or any officer authorized by him in this behalf.

(ii)

the container shall be free from any insect infestation or fungal contamination and also free from any undesirable or obnoxious smell.

(iii)

Tamarind (with seed) shall be packed in such a way as to protect the produce properly. The container shall be securely

closed and sealed in a manner approved by the Agricultural Marketing Adviser or an officer authorized by him in this behalf.

(iv)

the materials used inside the package must be clean and of such a quality as to avoid causing any external or internal damage to the produce.

(v)

the use of materials particularly of paper or stamps bearing trade specifications is permitted provided the printing or labeling has been done with non toxic ink or glue.

(vi)

each package shall contain Tamarind (with seed) of one grade designation only. Suitable number or small packets of Tamarind (with seed) containing graded material of the same lot or batch and grade designation may be packed in a master container such as jute bags, wooden cases, cardboard cartons etc., with details on master containers;

(vii)

the Tamarind (with seed) shall be packed in the pack sizes as per instructions of Agricultural Marketing Adviser issued from time to time.

7.

Method of Marking and Labeling.

(1)

The grade designation mark shall be securely affixed to or clearly and indelibly printed on each container.

(2)

In addition to the grade designation mark, the following particulars shall be clearly and indelibly marked on each package, namely:-

(a)

Name of the commodity;

(b)

grade designation;

(c)

name and address of the packer;

(d)

net Weight;

(e)

storage condition, if any;

(f)

country of origin;

(g)

date of packing;*

(h)

best before date;

(i)

lot or Batch number;

(j)

maximum retail price (inclusive of all taxes);

(k)

any other particulars as may be specified by the Agricultural Marketing Adviser.

* The date of packing shall be the date of completion of the analysis of the sample.

(3)

The ink used for marking on packages shall be of such quality which may not contaminate the product;

(4)

The authorized packer may after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him in this behalf, use his private mark or trade brand on the graded packages provided that the same do not indicate quality other than indicated by the grade designation mark affixed on the container in accordance with these Rules.

8.

Tamarind (with seed) may be graded and marked as per buyer's requirements for export provided minimum requirements and quality specified in the relevant Schedule are met under non-specified grade.

9.

Special conditions for grant of certificate of authorization.

(1)

In addition to the conditions specified in sub-rule (8) of rule 3 of the General Grading and Marking Rules, 1988, every authorized packer shall follow all instructions prescribed by Agricultural Marketing Adviser from time to time.

(2)

The authorized packer shall either set up his own laboratory manned by a qualified chemist approved by the Agricultural Marketing Adviser or an officer authorized by him in this behalf in accordance with rule 9 of the General Grading and Marking Rules, 1988 for testing the quality of Tamarind (with seed) or has access to the State Grading laboratory or Private Commercial Laboratory approved for the purpose.

(3)

The premises for processing, grading and packing shall be maintained in perfect hygienic and sanitary conditions. The personnel engaged in these operations shall be in sound health and free from any infectious, contagious or communicable diseases.

(4)

The premises shall have adequate storage facilities with pucca floor, good ventilation for light and air and free from rodent and insect infestation.

Schedule 1

(see rule-3)

Design of the Agmark Insignia

Name of the Commodity.....

Grade.....

II

(See rules 4 and 5)

Grade designation and quality of Tamarind (with seed)

1. Tamarind (with seed) shall be obtained from *Tamarindus indica* L. after removal of outer covering from the mature and ripe fruits.

2. Minimum Requirements: - (i) Tamarind (with seed) shall have the colour and characteristics of the commodity.

(ii)

Tamarind (with seed) shall be,-

(a)

matured and ripe;

(b)

clean;

(c)

free from deleterious substances;

(d)

free from obnoxious odour;

(e)

free from any external moisture;

(f)

free from any inorganic extraneous matters.

(iii)

Tamarind (with seed) shall not give rancid taste and musty odour.

(iv)

Tamarind (with seed) shall be free from insect infestation, live or dead insects, mould growth rodent hair and excreta, added colouring matter, dirt or any other impurities of animal origin.

(v)

Tamarind (with seed) shall comply with residual levels of heavy metals, pesticides and other food safety parameters laid down by the Codex Alimentarius Commission for exports.

(vi)

Tamarind (with seed) shall comply with residual levels of heavy metals, insecticides and pesticides, crop contaminants, naturally occurring toxic substances and other food safety parameters as prescribed under the Prevention of Food Adulteration Rules, 1955.

3. Criteria for grade designation :

Moisture content per cent by mass

Total ash per cent by mass on dry basis

Acid insoluble ash per cent by mass on dry basis

Crude fibre per cent by mass on dry basis

Damaged Pods, per cent age by mass on dry basis

Seed content, per cent age by mass on dry basis

Organic extraneous matter per cent by mass on dry basis

Maximum

Maximum

Maximum

Maximum

Maximum

Maximum

Maximum

1

2

3

4

5

6

7

8

Special

18.0

4.0

0.5

7.0

1.0

30

1.0

Standard

20.0

5.0

0.75

8.0

2.0

35

3.0

General

22.0

6.0

1.0

9.0

3.0

40

5.0

4. Other Requirements: - The condition of the Tamarind (with seed) shall be such as to enable them:

(i)

to withstand transport and handling and

(ii)

to arrive in satisfactory condition at the place of destination.

(iii)

Tartaric Acid contents shall be mentioned on the packages.

Explanations:- (i) Organic extraneous matter consists of vegetable matters of the plants other than the Tamarind pods and its seeds.

(ii)

Inorganic extraneous matter consists of sand, stones, pebbles, lumps of earth, clay, mud, etc.

(iii)

Damaged pods means insect damaged pods and those which are devoid of pulp.

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